



CHAPTER 47.

An Act to amend the Teachers (Superannuation) Acts, 1918 to 1935, and to provide for amend- A.D. 1937.
ment of the Superannuation Scheme framed
under the Education (Scotland) (Superannuation)
Acts, 1919 to 1935, so as to permit allocation
of part of a teacher's or educational organiser's
superannuation benefits to a spouse or depen-
dant, and to make further and better provision
for the payment of contributions when service
is discontinued; to extend paragraphs (b) and
(c) of subsection (1) of section twenty-one
of the Teachers (Superannuation) Act, 1925,
to educational organisers; and for purposes
connected with the matters aforesaid.

[13th July 1937.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) The Board of Education (hereafter in this
Act referred to as " the Board ") may, with the consent of
the Treasury and after consultation with representatives of
teachers affected, make rules—

(a) for securing that, in such circumstances and
subject to such conditions as to proof of good

Allocation
of part of
superan-
nuation
benefits to
spouse or
dependant.

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—8 & 9 Geo. 5.
c. 55.15 & 16
Geo. 5. c. 59.

health and other matters as may be specified in the rules, a teacher to whom an annual superannuation allowance is granted as from a date not earlier than three months after the commencement of this Act, under the School Teachers (Superannuation) Act, 1918 (hereafter in this Act referred to as "the Act of 1918"), or under the Teachers (Superannuation) Act, 1925 (hereafter in this Act referred to as "the Act of 1925"), or under a scheme made under section twenty-one of the Act of 1925, otherwise than by reason of infirmity of mind or body (not being a teacher to whom a superannuation allowance has at any previous time been payable otherwise than by reason of infirmity of mind or body), shall be allowed to surrender, as from the date of commencement of the allowance, in return for the benefits of the rules, such part not exceeding one-third of the allowance as may be specified in the rules; and

(b) for enabling the Board to grant, in return for such surrender as aforesaid, according as the teacher may in conformity with the rules elect, either—

(i) to the spouse or to a dependant of the teacher a pension payable in respect of the period, if any, for which the spouse or dependant survives the teacher; or

(ii) to the teacher an annuity payable as from the date of commencement of the superannuation allowance in respect of the period of the joint lives of himself and his spouse and to the spouse a pension payable in respect of the period, if any, for which the spouse survives the teacher.

(2) The amount of the pension granted under sub-paragraph (i) of paragraph (b) of the foregoing subsection, or the amounts of the annuity and pension granted under sub-paragraph (ii) of that paragraph, as the case may be, shall be such that the value, or the aggregate value, thereof shall be actuarially equivalent (according to tables to be prepared from time to time by the Government Actuary), at the date of the commencement of the superannuation allowance, to the value of that part

A.D. 1937.

of the allowance which is surrendered, so, however, that the said amount or amounts shall be reduced to such extent as the Government Actuary considers sufficient to recoup to the Board the cost, as estimated by them, of administering the provisions of this section.

(3) If any teacher has surrendered part of a superannuation allowance, whether in accordance with rules made under this section or in accordance with the amending scheme framed in pursuance of section four of this Act, then—

(a) for the purpose of calculating the amount of any supplementary death gratuity which may be granted under subsection (2) of section five of the Act of 1925, the sums paid to him and to his legal personal representatives by way of annual superannuation allowance shall be taken to be the sums which would have been so paid but for the surrender; and

(b) for the purpose of computing the balance of his contributions under section twelve of the Act of 1925, the sums payable under that Act to him or to his legal personal representatives (including any sums paid to him or them which under subsection (6) of that section are to be treated as if paid under Part II of that Act) shall be taken to be the sums which would have been so payable but for the surrender.

(4) If any teacher has surrendered part of a superannuation allowance in accordance with rules made under this section, then—

(a) for the purpose of calculating the amount of any supplementary death gratuity which may be granted under subsection (2) of section three of the Act of 1918, the sums received or receivable by him on account of annual superannuation allowance shall be taken to be the sums which would have been so received or receivable but for the surrender;

(b) the amount of any annual superannuation allowance granted or restored by virtue of subsection (1) of section six of the Act of 1925 shall be the amount which would have been so granted or restored but for the surrender, reduced by the amount surrendered; and

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- (c) for the purpose of determining whether any and, if so, what amount may be paid to him under subsection (4) of section five of the Act of 1918, or subsection (2) of section six of the Act of 1925, by way of annual superannuation allowance in respect of periods of such employment as is therein mentioned, the annual rate of salary at the date on which he ceased to be employed in recognised or contributory service shall be treated as reduced by the amount surrendered.
- (5) As respects organisers within the meaning of section fourteen of the Act of 1925—
- (a) references to teachers in the foregoing provisions of this section shall be construed as including references to organisers;
- (b) where an annual superannuation allowance is increased or supplemented under paragraph (a) or (b) of subsection (3) of the said section fourteen, the allowance shall, for the purpose of the foregoing provision of this section limiting the amount thereof which may be surrendered to a part not exceeding one-third, be taken to be the allowance as so increased or supplemented.
- (6) The provisions of sections six, seven, eight, nine and eleven of the Act of 1918, or of paragraphs 6, 7, 8, 9 and 11 of the First Schedule to the Act of 1925, as the case may be, shall apply in respect of pensions and annuities granted under this section and persons entitled thereto as those provisions apply in respect of superannuation allowances and persons entitled thereto.
- (7) Expenditure on pensions and annuities granted under this section, and the amounts of the reductions made in respect of the cost of administration under subsection (2) of this section, shall be included in the account kept under section fifteen of the Act of 1925 as if they were expenditure upon allowances and gratuities within the meaning of the Second Schedule to that Act, or shall be included as expenditure in the account kept under any corresponding provisions of any scheme made under paragraph (a) of subsection (1) of section twenty-one of that Act, as the case may be.
- (8) Rules made under this section shall be laid as soon as may be before both Houses of Parliament.

2.—(1) If the employment of a teacher in contributory service is discontinued— A.D. 1937.

(a) for a period not exceeding five years, or not exceeding such longer period as the Board may in the special circumstances of a particular case direct, in the case of a teacher who during that period is employed—

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Payment of
contribu-
tions during
intervals of
service.

(i) as a teacher in any part of His Majesty's dominions outside the United Kingdom; or

(ii) as a teacher in any school in a foreign country which is shown to the satisfaction of the Board to be a school in which it is expedient to facilitate the employment of British teachers; or

(iii) in an educational service outside the United Kingdom in employment which to a substantial extent involves the control or supervision of teachers; or

(b) for a period not exceeding one year in any other case;

the teacher may with the consent of the Board pay, at such times as the Board may require, by way of contributions under Part II of the Act of 1925 an amount equal to ten per cent. of his salary in respect of the period of absence, and if he so contributes the said period shall be treated for the purposes of that Part of that Act as being a period during which he was employed in contributory service.

(2) For the purposes of this section, the amount of the teacher's salary shall be taken to be the amount of his full salary in respect of his contributory service immediately before the date on which that service was discontinued.

(3) For the purposes of the provisions of Part II of the Act of 1925, one-half of any amount paid under this section shall be treated as having been paid by the teacher by way of teacher's contributions and the remaining half as having been paid by way of employer's contributions.

(4) The foregoing provisions of this section shall be construed as if they were contained in Part II of the Act of 1925.

A.D. 1937. (5) Section eleven of the Act of 1925 and section one of the Teachers (Superannuation) Act, 1933, shall cease to have effect.
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23 & 24
Geo. 5. c. 22.

Extension of certain schemes under s. 21 of Act of 1925 to organisers. 3. Paragraphs (b) and (c) of subsection (1) of section twenty-one of the Act of 1925 and any scheme made thereunder shall have effect, and shall be deemed always to have had effect, as if in those paragraphs and, except in so far as any express provision of the scheme otherwise requires, in the scheme references to employment in the capacity of a teacher included references to employment in an educational service which to a substantial extent involves the control or supervision of teachers.

Amending Superannuation Scheme for Scotland to be framed. 4.—(1) The provisions of this section shall apply to Scotland only and shall be construed together with the Education (Scotland) (Superannuation) Acts, 1919 to 1935.

(2) The Department shall, as soon as may be after the passing of this Act, frame a scheme amending the superannuation scheme, to which amending scheme the provisions of section eight of the Act of 1919 shall apply in like manner as that section applies to the scheme framed in pursuance of that Act.
9 & 10
Geo. 5. c. 17.

(3) The amending scheme framed in pursuance of this section shall include provision—

(a) for securing that, in such circumstances and subject to such conditions as to proof of good health and other matters as may be prescribed, a teacher shall be allowed to surrender as from the date of commencement of an annual retiring allowance granted to him under the superannuation scheme such part not exceeding one-third of the allowance as may be specified, in return for benefits to be prescribed, and for enabling the Department to grant, in return for such surrender as aforesaid, according as the teacher may in conformity with rules under the superannuation scheme elect, either—

(i) to the spouse or to a dependant of the teacher a pension payable in respect of the period, if any, for which the spouse or dependant survives the teacher; or

(ii) to the teacher an annuity payable as from the date of commencement of the retiring allowance in respect of the period of the joint lives of himself and his spouse and to the spouse a pension payable in respect of the period, if any, for which the spouse survives the teacher : A.D. 1937.
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Provided that the amount of pension granted under sub-paragraph (i) or the amounts of the annuity and pension granted under sub-paragraph (ii), as the case may be, shall be such that the value, or the aggregate value, thereof shall be actuarially equivalent (according to tables to be prepared from time to time by the Government Actuary), at the date of the commencement of the retiring allowance, to the value of that part of the allowance which is surrendered, so, however, that the said amount or amounts shall be reduced to such extent as the Government Actuary considers sufficient to recoup to the Department the cost, as estimated by them, of administering the provisions made in pursuance of this paragraph ;

- (b) for determining, in the case where a teacher has surrendered part of a retiring allowance or of a superannuation allowance under any provision of this Act, how the amounts of any payments to him or his legal personal representatives are to be calculated for the purpose of any provision of the superannuation scheme, and for applying any provision of the said scheme, with or without modifications, in respect of pensions and annuities granted under this subsection and persons entitled thereto; and
- (c) for enabling a teacher whose service is discontinued—

(i) for a period not exceeding five years, or not exceeding such longer period as the Department may in the special circumstances of a particular case direct, in the case of a teacher who during that period is employed—

- (a) as a teacher in any part of His Majesty's dominions outside the United Kingdom; or

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(b) as a teacher in any school in a foreign country which is shown to the satisfaction of the Department to be a school in which it is expedient to facilitate the employment of British teachers; or

(c) in an educational service outside the United Kingdom in employment which to a substantial extent involves the control or supervision of teachers; or

(ii) for a period not exceeding one year in any other case;

to pay into the Education (Scotland) Fund with the consent of the Department in respect of such period sums equal to ten per centum of his salary as at the date of discontinuing service, so that the said period may be reckoned as a period of service within the meaning of the superannuation scheme, and for determining the amount of such payments which shall be reckoned as contributions by the teacher.

15 & 16

Geo. 5. c. 55.

(4) Section seven of the Education (Scotland) (Superannuation) Act, 1925, shall have effect as if this section were included among the enactments therein mentioned, and the amounts of the reductions made in respect of the cost of administration under paragraph (a) of subsection (3) of this section shall be deemed to be expenditure for the purpose of the said section seven.

(5) On the coming into operation of the amending scheme framed in pursuance of this section, paragraph (d) of subsection (1) of section four of the Education (Scotland) (Superannuation) Act, 1925, and section two of the Teachers (Superannuation) Act, 1933, shall cease to have effect.

Short title,
citation,
repeal and
extent.

5.—(1) This Act may be cited as the Teachers (Superannuation) Act, 1937, and this Act, in so far as it relates to England, may be cited with the Teachers (Superannuation) Acts, 1918 to 1935, as the Teachers (Superannuation) Acts, 1918 to 1937, and, in so far as it relates to Scotland, may be cited with the Education

[1 EDW. 8. & *Teachers (Superannuation)*
1 GEO. 6.] *Act, 1937.*

[CH. 47.]

(Scotland) (Superannuation) Acts, 1919 to 1935, as the A.D. 1937.
Education (Scotland) (Superannuation) Acts, 1919 to —
1937.

(2) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) This Act shall not extend to Northern Ireland.

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SCHEDULE.

Section 5.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Geo. 5. c. 59.	The Teachers (Superannuation) Act, 1925.	Section eleven.
23 & 24 Geo. 5. c. 22.	The Teachers (Superannuation) Act, 1933.	Section one.

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